

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-23

Marine Transport Logistics, Inc. v. CMA CGM S.A.

**RESPONDENT CMA CGM S.A.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondent CMA CGM S.A. (“CMA”), by counsel, pursuant to 46 C.F.R §§ 502.69 and 502.5(b), moves for confidential treatment of its Appendix and states as follows in support thereof:

The Proposed Findings of Fact and Appendix accompanying CMA’s Opposition Brief include or reference CMA’s invoices, credit notes, service contracts, and information derived therefrom or incorporating the same (including deposition transcripts), which contain confidential, proprietary, and commercially sensitive contract terms, pricing, rate, and other information. The terms contained in CMA’s invoices, credit notes, policies, procedures, and service contracts are kept confidential by CMA, cannot be ascertained through outside sources and the business information they contain would cause significant prejudice and harm to CMA if disclosed. Accordingly, they are subject to the “Confidential Information” designation in the Protective Order entered November 17, 2023.

For the foregoing reasons, CMA respectfully requests that:

1. CMA’s invoices, credit notes, service contracts, and information derived therefrom or incorporating the same, as included in the Respondent’s Appendix (RX2-3, RX5, RX7, RX9-10, RX17-36, RX38, RX41, RX43-44, RX46-51) be kept confidential;
2. To the extent that any of the above-identified exhibits or any other documents produced by CMA and marked as confidential pursuant to the Presiding Officer’s Protective Order dated November 17, 2023 (Docket No. 41), appear in Complainant’s briefing or appendix,

CMA respectfully requests that those documents also be treated as confidential;

3. CMA's previously filed Confidential Version of its Appendix (Document 56) be accepted by the Administrative Law Judge and that the Public Version of the Appendix filed contemporaneously herewith likewise be accepted pursuant to 46 C.F.R. § 502.5(a)(2); and

4. The Administrative Law Judge accept, pursuant to 46 C.F.R. § 502.5(a)(2), the previously filed confidential and public versions of CMA's Opposition Brief (Confidential Version filed at Document 56; Public Version filed at Document 57), Respondent's Proposed Findings of Fact (Confidential Version filed at Document 56; Public Version filed at Document 58), and Respondent's Replies to Complainant's Proposed Findings of Fact (Confidential Version filed at Document 56; Public Version filed at Document 59).

Date: November 8, 2024

Respectfully submitted,

/s/ C. Wiley Grandy

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Counsel for Respondent CMA CGM S.A.

CERTIFICATE OF SERVICE

I certify that on the 8th day of November 2024, a true copy of the foregoing was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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Marine Transport Logistics, Inc.

/s/ C. Wiley Grandy

C. Wiley Grandy, Esquire